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Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

27, 2026 TRIAL

DATE: Not set

CASE: Alicia Requena, et al. v. Rebecca Jessop, et al.

CASE NO.: 25STCV32160

DEFENDANT REBECCA JESSOP'S DEMURRER TO PLAINTIFFS'
COMPLAINT

DEFENDANT REBECCA JESSOP'S MOTION TO STRIKE
THE PLAINTIFFS' COMPLAINT

PLAINTIFFS/CROSS-DEFENDANTS' DEMURRER TO
DEFENDANT/CROSS-

COMPLAINANT REBECCA JESSOP'S CROSS-COMPLAINT

Alicia Requena and Juan Requena (the "Requenas") bring this
habitability action against Rebecca Jessop and Kenneth Jessop concerning the
property located at 1514 253rd Street, Harbor City, CA (the
"Property"). Rebecca Jessop cross
complains against the Requenas. Before

the court are the following matters: (1) Rebecca Jessop's demurrer to the Requenas' Complaint, (2) Rebecca Jessop's motion to strike the Requenas' Complaint, (3) the Requenas' demurrer to Jessop's Cross-Complaint, and (4) a motion to be relieved as counsel.

The court notes that a substitution of attorney was filed on July 6, 2026 which moots the motion to be relieved as counsel. That motion is TAKEN OFF CALENDAR. The court proceeds to consider the remaining matters.

I. DISCUSSION RE JESSOP'S DEMURRER

A. Background

On November 14, 2025, the Requenas filed a Complaint against Defendants, Rebecca Jessop and Kenneth Jessop for (1) tortious breach of the warranty of habitability, (2) breach of the warranty of habitability (statute), (3) breach of the warranty of habitability (contract), (4) breach of covenant of quiet enjoyment, (5) private nuisance, (6) unlawful collection of rent and excessive collection of rent, (7) failure to pay relocation assistance, (8) violation of L.A.M.C. Code § 45.33, (9) violation of Civil Code § 1950.5, and (10) unlawful business practices in violation of BP § 17200 et seq.

On January 29, 2026, Rebecca Jessop (hereafter, "Jessop") filed a demurrer and motion to strike portions of the Complaint.

On June 10, 2026, the Requenas filed oppositions.

At the time of this writing, no reply had been filed.

B. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center

(2015) 236 Cal.App.4th 1401, 1406.) “Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice.” (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.)

C. Application

Jessop argues the entire Complaint fails as to Jessop because the Requenas’ “alleged tenancy arose from an unauthorized lease executed unilaterally by Defendant Kenneth Jessop during the pendency of the parties’ marital dissolution, without the knowledge, consent, or participation of Defendant Rebecca Jessop.” (Dem., pp. 5:26-6:2.) Stated another way, Jessop argues there is no landlord-tenant relationship between her and the Requenas.

The argument lacks merit.

Jessop relies on facts that are not alleged in the Complaint. Further, contrary to Jessop’s position, the Complaint establishes a landlord-tenant relationship. The Complaint alleges that Jessop was a co-owner (Complaint, ¶ 8), an operator and manager (Complaint, ¶ 3), that she exercised real or apparent authority over the Property (Complaint, ¶ 3), and that the Property “was, and still is, owned by Defendant REBECCA JESSOP” (Complaint ¶ 11). Jessop fails to show there is a defect on the face of the pleading.

D. Conclusion

The demurrer to the Complaint is OVERRULED.

II. DISCUSSION RE JESSOP’S MOTION TO STRIKE

A. Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322(b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., §

436, subds. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)²²²

B. Application

Defendant moves to strike allegations

of punitive damages, statutory penalties and treble damages, attorney's fees, allegations premised on landlord status or possession, and equitable and injunctive relief.

1. Punitive Damages

Jessop

argues punitive damages are not adequately alleged against her. The court disagrees.

"In

an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant."²²³ (Civ. Code, § 3294, subd. (a).)²²⁴

Here, the Complaint alleges that Jessop (1) rented an illegal, unpermitted dwelling that had never received a certificate of occupancy; (2) collected rent on that dwelling in violation of LAMC § 151.04; (3) ignored and failed to comply with government orders to remediate habitability violations; (4) refused to pay mandatory relocation assistance; (5) repeatedly attempted to coerce the Requenas to vacate through offers below legally required amounts; and (6) engaged in threatening conduct and removing Plaintiffs' personal property to force displacement. (Complaint, ¶¶ 13-30.) These allegations sufficiently describe oppressive or malicious conduct by Jessop.

2. Statutory

Penalties, Treble Damages, and Enhanced Damages

The Requenas seek statutory penalties,

treble damages, and enhanced damages under various provisions of the Los Angeles Municipal Code and Civil Code. Jessop

argues these allegations should be stricken because statutory penalties, treble

damages, and enhanced damages under the relevant Los Angeles Municipal Code and

Civil Code apply only to landlords who demanded, accepted, or retained rent, or

who engaged in displacement or harassment conduct. However, the court has found the Complaint

sufficiently alleges Jessop's status as a landlord.

3.

Attorney's Fees

Plaintiff seeks attorney's fees pursuant to various provisions of the Los Angeles Municipal Code and Civil Code. Jessop argues the attorney's fees allegations should be stricken because she was not a landlord. The court rejects the argument for the reasons discussed above.

4. Allegations

Premised On Landlord Status or Possession

The court rejects the arguments to strike these allegations for the reasons discussed in the demurrer.

5. Equitable and Injunctive Relief

Jessop

moves to strike the equitable and injunctive relief allegations based she was not the Requenas' landlord. The court rejects the argument to strike these allegations for the reasons discussed above.

C. Conclusion

The motion to strike
is DENIED.

III. DISCUSSION RE REQUENAS' DEMURRER

A. Background

On January 29, 2026, Jessop filed a Cross-Complaint against the Requenas for (1) declaratory relief, (2) fraud, (3) trespass, (4) nuisance, (5) interference with property rights, (6) equitable indemnity, and (7) civil conspiracy.

On March 4, 2026, the Requenas filed a demurrer to the Cross-Complaint.

On June 18, 2026,
Jessop filed an opposition.[1]

At the time of this
writing, no reply had been filed.

B. Legal Standard

See above.

C. Application

The Requenas demur
to the first, third, fourth, fifth, and seventh causes of action. The court addresses the demurrers in turn.

1. Declaratory Relief (1st COA)

The Requenas argue the first cause of action fails because Jessop seeks a judicial declaration which will be decided in connection to Requenas' Complaint. The court agrees.

"[D]eclaratory relief may be an improper remedy where evidence in the trial of the main action would be substantially the same as that presented in connection with a cross-complaint. [Citations.]

On appeal, courts have held that if a plaintiff or cross-complainant has other means of seeking a determination of their rights, then a trial judge may sustain a general demurrer to a declaratory relief claim." (C.J.L. Construction, Inc. v. Universal Plumbing (1993) 18 Cal.App.4th 376, 390.)

Here, Jessop seeks a judicial declaration to determine whether the Requenas possessed any lawful tenancy or possessory interest; whether Jessop owed any duties arising from the purported lease; and whether Jessop bears any liability for damages alleged by the Requenas.

(Cross-Complaint, ¶ 25.) These
are issues that are naturally embraced by and indispensable to the Requenas' claims. Jessop's declaratory relief does

not add anything new and is therefore subject to demurrer.

The demurrer to the first cause of action is SUSTAINED. Leave to amend is DENIED.

2. Trespass (3rd COA)

The Requeñas argue the third cause of action fails because the Cross-Complaint alleges that Kenneth Jessop consented to and lease the Property to the Requeñas. The argument is meritorious.

A cotenant has no right to oust a person who holds possession with the consent of another tenant in common. (*Verdier v. Verdier* (1957) 152 Cal.App.2d 348, 352.)

Here, the Cross-Complaint alleges that Kenneth Jessop was a part-owner of the Property and leased it to the Requeñas. (Cross-Complaint, ¶¶ 5, 10, 17.) Because Kenneth Jessop, as the part-owner, consented to the Requeñas' occupation of the Property by way of a lease agreement, Jessop has no claim for trespass.

The demurrer to the third cause of action is SUSTAINED. Leave to amend is DENIED.

3. Nuisance (4th COA)

The Requeñas argue the fourth cause of action fails because there are no allegations that the Requeñas interfered with Jessop's use and enjoyment of the Property during the complained-of period. The argument lacks merit.

The elements of an action for private nuisance are: "First, the plaintiff must prove an interference with his use and enjoyment of its property. Second, the invasion of the plaintiff's interest in the use and enjoyment of the land must be substantial, i.e., it caused the plaintiff to suffer substantial actual damage. Third, the interference with the protected interest must not only be substantial, it must also be unreasonable, i.e., it must be of such a nature, duration, or amount as to constitute unreasonable interference with the use and enjoyment of the land. (Today's

IV, Inc. v. Los Angeles Cnty. Metro. Transportation Auth. (2022) 83 Cal.App.5th 1137, citing San Diego Gas & Electric Co. v. Sup. Ct. (1996) 13 Cal.4th 893, 938; CACI No. 2021.)

Here, the Cross-Complaint alleges that the Requenas “created and maintained conditions that substantially and unreasonably interfered with Cross-Complainant’s use and enjoyment of the Subject Property. Such conduct included refusal of lawful access, obstruction of repairs, tampering with safety systems, vandalism, and interference with government-mandated inspections.” (Cross-Complaint, ¶ 28.) These allegations are sufficient to satisfy the use and enjoyment element of a nuisance claim.

The demurrer to the fourth cause of action is OVERRULED.

4. Interference with Property Rights (5th COA)

The Requenas argue the fifth cause of action fails because it is not a cognizable claim under California law.

The court agrees. The court is not aware of any authority, and Jessop does not provide any, recognizing “interference with property rights” as a cause of action.

The demurrer to the fifth cause of action is SUSTAINED. Leave to amend is GRANTED.

5. Civil Conspiracy (7th COA)

The Requenas argue the seventh cause of action fails because the Cross-Complaint fails to state which Cross-Defendant committed which tort and which Cross-Defendant is liable under a conspiracy theory.

“The elements of a civil conspiracy are (1) the formation of a group of two or more persons who agreed to a common plan or design to commit a tortious act; (2) a wrongful act committed pursuant to the agreement; and (3) resulting damages.” (City of Industry v. City of Fillmore (2011) 198 Cal.App.4th 191, 211-212.) “It is well settled that bare allegations and rank conjecture do not suffice for civil conspiracy.” (AREI II Cases (2013) 216 Cal.App.4th 1004, 1022.)

Here, the court

finds the seventh cause of action is deficient for a different reason. The Cross-Complaint alleges that "Cross-Defendants knowingly agreed and acted in concert to create, maintain, and exploit an unlawful tenancy, obstruct enforcement efforts, and interfere with Cross-Complainant's property rights. Each Cross-Defendant had knowledge of the plan's unlawful purpose and intended to aid in its accomplishment. Overt acts were committed in furtherance of the conspiracy, resulting in damage to Cross-Complainant." (Cross-Complaint, ¶ 31.) These allegations are conclusory and devoid of facts to establish each element of the claim.

The demurer to the

seventh cause of action is SUSTAINED.

Leave to amend is GRANTED.

D. Conclusion

The demurrers to the

first, third, fifth, and seventh causes of action are Sustained. Leave to amend is Granted as to the fifth and seventh causes of action only.

The demurrer to the

fourth cause of action is Overruled.

IV. DISPOSITIONS

1.

Jessop's demurrer to the Complaint is Overruled. Jessop's motion to strike is Denied. Jessop is ordered to serve and file her Answer to the Complaint within 5 days of this order.

2. The Reuenas' demurrers to the first, third,

fifth, and seventh causes of action in the Cross-Complaint are Sustained. Leave to amend is Granted as to the fifth and seventh causes of action only. The demurrer to the fourth cause of action is Overruled.

Jessop is ordered to serve and file her First Amended Cross-Complaint within 15 days of this order.

3. The motion to be

relieved as counsel is Moot.

Moving parties to
give notice, unless waived.

Dated: July 27, 2026

Brock T. Hammond

Judge of the Superior Court

[1] Jessop filed an opposition to a
motion to strike that the Requeneas never filed. The court does not consider Jessop's filing
regarding the nonexistent motion to strike.